

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

Vikram Dev vs The State Of Maharashtra ... on 14 March, 2024
(2024) 2 Bom CR 412, 2024 Cri LJ 1580
Bench: Revati Mohite Dere, J. and Gauri Godse, J.

JUDGMENT

Revati Mohite Dere, J.

1. The applicant, Vikram Dev, has approached this Court under Section 482 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, seeking regular bail in connection with C.R. No. 102 of 2024 registered with Cyber Crime Police Station, Bandra, Mumbai. The offences alleged against the applicant are punishable under Section 111 of the Bharatiya Nyaya Sanhita (BNS), 2023 and Section 66D of the Information Technology Act, 2000.
2. The case of the prosecution is that on 15-01-2024, an organized syndicate executed a sophisticated OTP phishing and corporate SIM-swap scheme resulting in wrongful loss of Rs. 3.8 Crores to a commercial entity. The applicant was arrested on 22-01-2024 on the allegation that he facilitated logistics and server infrastructure for the prime conspirators.
3. Mr. Merchant, learned Senior Counsel for the applicant, submitted that the investigation is complete and the charge sheet has already been filed on 05-03-2024. He contends that the applicant had no mens rea or knowledge of the phishing fraud. Furthermore, the electronic evidence sought to be relied upon by the prosecution, namely Call Detail Records (CDR) and cell-site logs, has been obtained without compliance with mandatory statutory certification under Section 63 of the Bharatiya Sakshya Adhinyam (BSA), 2023.

4. Counsel for the applicant placed strong reliance on the judgment reported in (2011) 1 SCC 694 in the case of Sanjay Chandra v. Central Bureau of Investigation, where the Supreme Court settled the principle that bail is the rule and jail is the exception. He also cited the landmark decision reported in (2014) 10 SCC 473 in the case of Anvar P.V. v. P.K. Basheer regarding the mandatory nature of electronic evidentiary certificates.

5. On the other hand, the learned APP Ms. Shinde for the State vehemently opposed the bail plea. She argued that the applicant operated a key logistics conduit under Section 111 of the Bharatiya Nyaya Sanhita (BNS), 2023. She further pointed out that bank ledger audits and panchanama dated 25-01-2024 establish physical proximity of the applicant's leased vehicles near cyber operating nodes.

6. We have considered the rival submissions and perused the charge sheet materials. The custodial interrogation of the applicant has concluded. The main conspirators who received the siphoned funds in offshore accounts remain absconding. No direct financial transfer has been traced to the applicant's accounts. Continued incarceration would amount to pre-trial punishment.

7. In view of the above circumstances, the applicant is directed to be released on bail on executing a P.R. Bond of Rs. 50,000/- with one or two local sureties. Bail application is allowed.

Gauri Godse, J. - I agree.